2019 AMENDED UNIVERSITY OF MAKATI STUDENT COUNCIL CONSITUTION

TABLE OF CONTENTS

PREAMBLE	2
ARTICLE I. GENERAL PROVISIONS	2
ARTICLE II. NAME AND DOMICILE	2
ARTICLE III. DECLARATION OF PRINCIPLES AND OBJECTIVES	3
ARTICLE IV. MEMBERSHIP	4
ARTICLE V. STUDENTS' BILL OF RIGHTS	4
ARTICLE VI. DUTIES AND OBLIGATIONS OF STUDENTS	5
ARTICLE VII. THE COMPOSITION AND FUNCTIONS OF THE UNIVERSITY STUDENT COUNCIL EXECUTIVE BOARD	6
ARTICLE VIII. POWERS AND DUTIES OF THE UNIVERSITY STUDENT COUNCIL	11
ARTICLE IX. THE COLLEGE STUDENT COUNCIL	12
ARTICLE X. THE STUDENTS' JUDICIAL COUNCIL	14
ARTICLE XI. THE STUDENTS' CONGRESS	15
ARTICLE XII. COORDINATING COUNCIL OF CAMPUS CO-CURRICULAR ORGANIZATIONS	16
ARTICLE XIII. THE COMMISSION ON STUDENT ELECTION	17
ARTICLE XIV. TENURE, QUALIFICATIONS, AND VACANCY	18
ARTICLE XV. ACCOUNTABILITY OF STUDENT OFFICERS	19
ARTICLE XVI. CSC AND USC ADVISERS	20
ARTICLE XVII. FUNDING OF THE UNIVERSITY STUDENT COUNCIL	20
ARTICLE XVIII. AMENDMENTS AND REVISIONS	21
ARTICLE XIX. SEPARABILITY CLAUSE	21
ARTICLE XX. TRANSITORY PROVISION	21

PREAMBLE

We, the students of the University of Makati, with the help of the Almighty God, believing in the needs of student council that shall uphold the academic standards of our Alma Mater, inculcate personality development, advance our interests, unite the whole student body, and protect the rights and general welfare of students at all times imbued with our USC Core values: Excellence, Professionalism, Integrity and Compassion, do ordain and promulgate this Constitution.

ARTICLE I

GENERAL PROVISIONS

Sec. 1 This Constitution shall be known as the Constitution of University of Makati (UMak) Student Council.

Sec. 2 This Constitution shall govern the University of Makati Student Council, College Student Councils and guide various Campus Co-Curricular Organizations in the University.

Sec. 3 The highest Union and Organization of undergraduate students of the University of Makati shall be known as the University Student Council hereinafter referred to as USC and the College Student Council in all existing Colleges and Academic Centers.

Sec. 4 The University Student Council as mandated by the students shall be the official representative of all bona fide students of University of Makati.

Sec. 5 The University Student Council is the highest student organization of the University of Makati Student Body and all of its powers emanate from, such powers are exercised through the governing bodies constituted in this Constitution.

ARTICLE II

NAME AND DOMICILE

Sec. 1 The name of the organization shall be known as the University of Makati (UMak) Student Council.

Sec. 2 The permanent office of the University of Makati Student Council shall be located at Room 210, Academic Building 2 of University of Makati.

ARTICLE III

DECLARATION OF PRINCIPLES AND OBJECTIVES

A. PRINCIPLES

Sec. 1 The University Student Council is a democratic organization whose prime duty is to protect the rights, advance the interest, and guarantee the general welfare of the University of Makati Student Body.

Sec. 2 The University Student Council is a democratic organization whose prime duty is to uphold the rights, advance the interest, and guarantee the welfare of the students.

Sec. 3 The University Student Council in terms of decisions, matters to be discussed and any other means should be done under parliamentary procedures.

Sec. 4 The University Student Council at all times should work hand-in-hand, as a means of Collaborative approach.

Sec. 5 The University Student Council believes that all Council Officers must remain faithful at all times to the office he/she is serving.

Sec. 6 The University Student Council believes in the importance of academic freedom and effective student services.

Sec. 7 The University Student Council recognizes the importance of different student organizations and other groups established in the University not contrary to the provisions of this Constitution.

B. OBJECTIVES

Sec. 1 The University Student Council shall promote mutual understanding through social, civic, intellectual, recreational and scientific programs and activities.

Sec. 2 The University Student Council shall promote the virtue of responsibility, transparency and accountability in all levels of operations.

Sec. 3 The University Student Council shall assist in the values formation and character education of the students by promoting activities that instill civic participation other activities that will involve them in public discussions and allow them to take definitive stand on significant local, national and global issues.

Sec. 4 The University Student Council shall undertake protective measures against all forms of abuses and repression detrimental to the students' well-being.

ARTICLE IV

MEMBERSHIP

Sec. 1 All bona fide students of the University of Makati are members of the University Student Council.

Sec. 2 All University Student Council members shall pay the USC fee collected by the Student Council officers during enrollment period of every semester.

Sec. 3 The members of the University Student Council through the approval of Management Committee shall determine the fixed amount of the membership fee which is Fifty pesos (₱ 50.00)

Sec. 4 Students automatically lose their membership by graduating from the University of Makati, by filing leave of absence, by not enrolling on the semester of an Academic Year, or by transferring to another school; however, the students may regain their membership by re-enrolling.

ARTICLE V

STUDENTS' BILL OF RIGHTS

Sec. 1 Right of a Student to Academic Freedom:

a) Right to quality education;
b) Right of the students, through Student Council Officers as representative of the University and Colleges, to participate in any decision-making that affects the students in general;
c) Right of the student to be informed of their class standing and see the computation of their grades; and
d) Right to request for a copy of a written evaluation of his/her class performance.

Sec. 2 Right of the student to information:

a) Every student has the right to be given consultation by their professors by virtue of the latter's consultation hours;
b) Every student has the right to have access to his official records and other pertinent documents pertaining to official acts or transactions and the confidentiality of his records maintained.
c) Every student has the right to be consulted and be informed about tuition fee increase, rules and regulations and other school policies before its implementation.
d) Every student has the right to evaluate the performance of their professors.

Sec. 3 Right to due process:

a) Every student has the right to be informed of the nature of complaint and accusations against him/her;
b) Every student has the right to defend themselves against accusations;
c) No students shall be subjected to disciplinary action, suspension and/or expulsion without due process; and
d) Every student has the right to be presumed innocent until proven otherwise.

Sec. 4 Every student has the right to form, join and actively participate in different organizations, groups and other associations for purposes not contrary to law and regulations.

Sec. 5 Every student has the right to freedom of expression in accordance with the provisions stated in the Student Handbook.

Sec. 6 Right to press freedom and publication:

a) Every organization has the right to post and circulate banners, posters, announcements, brochures and leaflets in accordance with the policy and regulations of the University of Makati; and
b) The University of Makati Student Media Group (USMG) is the University of Makati official press publication.

Sec. 7 Right to Suffrage

a) According to the Philippine Constitution, Suffrage is defined as the right and obligation to vote of every bona fide student in the annual election.

b) Every student should always participate in the annual student election.

Sec. 8 The University Student Council recognizes the vital roles of all accredited organizations as a means of exercising students' rights and welfare.

ARTICLE VI

DUTIES AND OBLIGATIONS OF STUDENTS

Sec. 1 Every student has the responsibility to observe the laws of the Republic of the Philippines, and the rules and regulations of the University at all times.

Sec. 2 Every student shall pay the University Student Council Fee as regulated and approved by appropriate University policy.

Sec. 3 Every student shall support, promote and observe the principles and objectives of the University Student Council and the University.

Sec. 4 Every student shall exercise their rights and privileges responsibly.

Sec. 5 Every student shall promote the good name of the University.

Sec. 6 Every student shall maintain the University properties, facilities, and equipment free from all forms of destruction and vandalism.

Sec. 7 Every student shall help in the promotion of academic atmosphere conducive to learning and harmony among all the members of the University of Makati community.

Sec. 8 Every student shall be gender and culture sensitive in handling issues without any bias to sexual preferences and racial lineages.

ARTICLE VII

THE COMPOSITION AND FUNCTIONS OF THE USC EXECUTIVE BOARD

Sec. 1 The USC Executive Board shall be the highest governing body and representative authority of the University Student Council. The USC Executive Board shall be composed of the Chairman of the different College Student Council and the President of the Higher School ng UMak (HSU) Supreme Student Government.

Sec. 2 The Executive Board shall be elected by the different College Student Council by majority vote.

Sec. 3 The presence of the majority of the total membership of the council shall have a quorum. The Executive Board Council, who presides, shall not do any business in the absence of quorum.

Sec. 4 The USC Executive Board shall be composed of the following: President, Vice President, Secretary General and Chairperson for the following committees; Finance and Review Committee, Audit and Property Custodian Committee, Education and Research Committee, Public Information Committee, Community and Extension Committee, Health and Sports Committee, Socio-Cultural Committee, Student Personality Development Committee and Two (2) Board Members.

A. The **President** shall have the following duties and responsibilities:

a) Represent the students to the Board of Regents and on events where the organization needs representation;
b) Sign all official documents, resolutions, project proposals, budget requests and all communications of the University Student Council;
c) Present to the University Student Council and to the Co-Curricular Campus Organizations the Annual Action Plan,

Budget Proposal and Accomplishment Report of the University Student Council;

d) Supervise and coordinate all functions and activities of the University Student Council;

e) Call, Preside and Adjourn Executive Board and University Student Council meetings;

f) Regularly attends the Executive Committee Meeting and all University Student Council meetings.

B. The **Vice President** shall have the following duties and responsibilities:

a) Assume the responsibilities of the President if the President is absent or incapacitated;

b) Preside over the Executive Board and University Student Council meetings in the absence of the President;

c) Regularly attends the Executive Committee and University Student Council meetings in the absence of the President.

d) the President in all matters where his/her assistance is necessary;

e) Supervise members in planning and arranging meetings or programs of activities; and

f) Sign all official documents, resolutions, project proposals, budget requests and all communications of the University Student Council in the absence of the President;

C. The **Secretary *General*** shall have the following duties and responsibilities:

a) Records all minutes of the proceedings;

b) Prepares communication letters and reports;

c) Safekeeping of all the necessary papers and records of the University Student Council; and

d) In the absence of the President and Vice President, the Secretary General can sign all official documents, resolutions, project proposals, budget requests and all communications of the University Student Council

e) Coordinate with all the College Student Council Secretary to facilitate an effective filing system of the USC.

f) Administer the information dissemination of the University-wide activities, programs and campaigns of the USC.

g) Must have an Assistant Secretary approved by the Student Judicial Council***.***

D. The **Finance and Review Committee** shall have the following duties and responsibilities:

a) Maintain the accountability and transparency of the USC by monitoring and enforcing standard operating procedures concerning the USC financial system.
b) Coordinates with the University Cash Office regarding financial matters of the University Student Council;
c) Supervise all payments, requisitions and the liquidation of all University Student Council transactions;
d) Prepares financial report of all student activities organized by the University Student Council for submission to PSA, Dean of OSL and Accounting Office; and
e) Assist all College Student Council Treasurers in preparing financial reports.
f) Shall sign as one of the recommending approval together with the Prefect of student Activities and the Dean of OSL on all budget request of the student organizations.
g) Take charge in the executive board meeting for the planning of the annual budget of the USC.
h) Require financial documents to all College Student Council and accredited organizations, for the maintenance of an effective monitoring system such as approved budget request and liquidation approved and accepted by the Accounting Office.
i) Must have an Assistant Treasurer approved by the Student Judicial Council.

E. The **Audit and Property Custodian Committee** shall have the following duties and responsibilities:

a) Review and approve accuracy and general acceptability of the reports submitted by the Finance Committee;
b) Assist all College Student Auditors in auditing financial statements;
c) Prepare annual audit report of the University Student Council.
d) Act as Custodian of all properties of the University Student Council.
e) Responsible to manage, control, maintain and secure all the properties of the USC. (Add)

f) Property Custodian is responsible for maintaining accurate records and documentation for all property assigned to the University Student Council. (add)

g) Strictly implement the house rules of the USC approved by the Executive Board.

F. The **Education and Research Committee** shall have the following duties and responsibilities:

a) Responsible for planning and organizing seminars, forums organized by the university Student Council focusing on the following:

   i. Organization Development
   ii. Academic *Growth*
   iii. Issue Advocacy
   iv. Spiritual and Values Formation
   v. Sports
   vi. Outreach program
   vii. Community Engagement

b) Serves to enhance and promote the board's policies, principles and strategic plans in regard to the learning and research community at the University;

c) Monitor all administration matters relating to education and research;

d) Review and recommend to the Executive Board, the policies and actions concerning the administration of all fees, contracts, funds and other assets related to education and research.

e) Implement programs for the advancement of the students learning in conformity with the *University* policies.

G. The **Health and Sports Committee** shall have the following duties and responsibilities:

a) Provides physical activities for the students of the University;

b) Organize and conduct different sports and games activities in a disciplined manner among the students.

c) Suggest possible developments to sporting facilities and programs.

d) Establish appropriate coordination of health and well-being services for students across the University to provide efficient and effective support;

e) Provides medical assistance during events and other physical programs of the University; and

f) Performs other tasks assigned by the Executive Board.

H. The **Community and Extension Committee** shall have the following duties and responsibilities:

a) Serve as external linkage to community outside the University;
b) Choose community that the University Student Council wants to help; and
c) Organized community extension programs and services.

I. The **Socio-Cultural Committee** shall have the following duties and responsibilities:

a) Provides programs related to Issue Advocacy and other socio-cultural activities; and
b) Strengthen and promote a community spirit among all students by providing programs and activities.
c) Create a platform that provides the students with an opportunity to display creative talents in a variety of ways.
d) Performs other tasks assigned by the Executive Board.

J. The **Public Information Committee** shall have the following duties and responsibilities:

a) Distributes information related to the upcoming programs and activities of the University Student Council;
b) Filter announcements to provide reliable information; and
c) *Dissemination of proper and reliable information*
Administer the official page of the University Student Council.
d) Performs other tasks assigned by the Executive Board.

K. The ***Student Personality Development*** **Committee** shall have the following duties and responsibilities:

a) Committed to help the UMak students in all aspects of their personal growth.
b) Handle programs and activities related to Personality Development that help the students in honing as well as showcasing different aspects of their personality.
c) Coordinates with the guidance council for uplifting the morale of the students; and

d) Performs other tasks assigned by the Executive Board.

L. The **Board Members**

a) It shall be composed of two members, (1) College Chairman and (1) HSU – SSG President.
b) The President of the Higher School ng UMak (HSU- SSG) shall be seated as a board member.
c) He/She shall represent the College and HSU students to the University Student Council and on events where the organization needs representation.
d) Create and suggest programs/activities to the different committee in their committee planning.
e) Responsible for the global direction of the council, which will oversee the current organization management.
f) Ensuring that the council is generating profits by fund raising and getting sponsors for the different activities of the council.
g) Performs other tasks assigned by the Executive Board.

ARTICLE VIII

POWERS AND DUTIES OF THE UNIVERSITY STUDENT COUNCIL

Sec. 1 The University Student Council shall be the highest governing body of the entire students of the University of Makati.

Sec. 2 The University Student Council shall have the following functions, duties and responsibilities:

a) Formulate and recommend programs that will address relevant issues concerns of the students;
b) Plan and implement policies and programs designed to protect and promote students' rights and welfare;
c) Monitor and evaluate the students' activities in the University and in the community;
d) Create committees necessary to address the needs of the students;
e) Make recommendations to University authorities regarding student matters, affair and activities;
f) Serve as a representative of the studentry in voicing their opinions, suggestions and grievances;
g) Summon an officer of the Student Council Assembly for inquiry on matters pertaining to their duties and functions;
h) Act as coordinating Council of all Campus Co-Curricular Organizations;

i) Monitor and supervise elections of other recognized University Co-Curricular Organizations;

j) Review and supervised the granting renewal or revocation of accreditation University Student Organization to the OSL and PSA.

k) Turn-over financial assets, papers, documents, properties and other responsibilities to the incoming University Student Council; and

l) Spearhead all mandated duties and powers, programs and activities of the University Student Council such as but not limited to organization development, academic, issue advocacy, spiritual and values formation, sports, outreach program and community engagement.

ARTICLE IX

THE COLLEGE STUDENT COUNCIL

Sec.1 The political and administrative subdivisions of the University Student Council are the College Student Council (CSC).

Sec. 2 All CSC shall be elected at large by their respective colleges and be composed of a Chairperson, Vice-Chairperson, Secretary, Treasurer, Auditor and Year Level Representatives with the following duties and responsibilities:

A. Chairperson

a) Automatically becomes a member of the committee in the University Student Council;

b) Acts as the presiding officer in all the meetings of the council;

c) Represents the College Student Council on the occasions or events where the organization needs representation;

d) Signs all resolutions, communications, project proposals, request, forms and all other official document of the College Student Council; and

e) Performs such other duties which may necessary for the proper discharge and performance of the function of his/her office.

f) Supervise, monitor and assist their respective organizations for as long as it is not contrary to their Constitution and By-Laws; and

g) The Chairperson must be at least 2nd Year Student**.**

B. Vice Chairperson

a) Assumes the functions of the Chairperson in case of absence or vacancy;
b) Assist the Chairperson in carrying out the objectives of the College Student Council; and
c) Performs all other functions delegated by the Chairperson.
d) Signs all resolutions, communications, project proposals, request, forms and all other official document of the College Student Council as long.

C. Secretary

a) In-charge of taking the minutes of the meeting and safekeeping of all the records of the College Student Council;
b) Prepares communication letters and file documents needed by the College Student Council; and
c) Performs all other functions related to College Student Council delegated by the Chairperson.
d) Automatically becomes a member of the Secretary General Committee.
e) Eligible to be appointed as the Assistant Secretary in the said committee through the approval of Student Judicial Council.

D. Treasurer

a) Collects and receives all incoming funds except for the University Student Council fund which is to be collected by the Accounting Office;
b) Supervised all payments, requisitions and liquidation transactions;
c) Submit a financial report to the University Student Council, OSL and PSA office at the end of semester; and
d) Performs all other functions related to College Student Council delegated by the Chairperson.
e) All Treasurer of respective College Student Council will be automatically part of the Finance and Review Committee; and
f) Eligible to be appointed as the Assistant Treasurer in the said committee through the approval of Student Judicial Council.

E. Auditor

a) Audits the financial statement prepared by the treasurer;
b) Assists the treasurer in facilitating transactions of the College Student Council;
c) Monitors fund allocations for every activity;

d) Takes charge of the equipment and properties of the College Student Council; and
e) Performs all other functions related to College Student Council delegated by the Chairperson.

F. Year Level Representatives

a) Represent the year level they represent to the Student Representatives' Assembly; and
b) Performs all other functions related to College Student Council delegated by the Chairperson.
c) Recommends and makes a proposal for the benefit of his/her respective year level.
d) Coordinate to all Class Representatives for the student concerns among their year level.

ARTICLE X

THE STUDENT JUDICIAL COUNCIL

Sec. 1 The Student Judicial Council is a constitutional body that shall serves as the official Judicial Arm of the University Student Council.

Sec. 2 The Student Judicial Council shall be composed of (11) Twelve Magistrates and (1) Chief Magistrate to be elected from them.

a) Regular and bona fide student of the University of Makati; and
b) Of good moral character and has no derogatory records as certified by the Office of Student Life.

Sec. 3 The Student Judicial Council shall:

a) Sit en banc, hear, try, and resolve complaints involving matters of constitutionality, legality, and jurisdiction over acts, policies, and resolutions committed by the USC.
b) Create its own Internal Procedures and Rules of Court, determining its own necessary structure and procedures concurrent with this Constitution.
c) Work hand in hand with the Finance and Review Committee and Student's Congress to render transparency and accountability of the University Student Council, its units and its members.
d) Review, approve and/or reject decisions of appointments made by Executive Board.
e) Summon and order investigations, suspensions, and impeachments or recalls of Executive Board.
f) Interpret laws and policies, every decision that has been made shall be final and executory.

Sec. 4 The Chief Magistrate of the Student Judicial Council shall:

a) Preside over all proceedings of the Student Judicial Council and;
b) Act as the official spokesperson of the Student Judicial Council.

Sec. 5 A student shall only serve as Magistrate if they have not committed any major offense as stated in the Student Handbook and carry a minimum load requirement for regular students.

Sec. 6 All Magistrates shall be prohibited from appointed or elected positions in any offices or instrumentality.

Sec. 7 Magistrates of the Student Judicial Council are appointed by the Executive Board.

Sec. 8 The Chief Magistrate is to be elected by all Magistrates of the Student Judicial Council and chosen from among them. The Chief Magistrate should be a second (2nd) term Magistrate unless any of the following should occur, in which case any Magistrate shall be qualified for the position:

a) All Magistrate are first time appointees; or
b) All 2nd term Magistrates decline the position of Chief Magistrate.

Sec. 9 No student may serve as Magistrate for more than (2) terms in office.

Sec. 10 The term of the office of Magistrates shall commence upon the appointment and shall end on the last day of April the following year.

ARTICLE XI

THE STUDENTS' CONGRESS

Sec. 1 The Student's Congress is the highest policy making body of the University Student Council.

Sec. 2 The Student's Congress shall be composed of (11) members and (1) Student's Congress President to be elected from them.

Sec. 3 The members of the Student's Congress should have the following qualifications:

a) Must be a bona fide student of the University of Makati;
b) Must not have any subject with failing grades, incomplete grade and/or has dropped unofficially from any of his/her subject in at least two semesters prior to election; and
c) Must be of good moral standing and has no derogatory records as certified by the OSL.

Sec. 4 The members of the Student's Congress shall have the following duties and responsibilities:

a) Evaluate the accomplishments of the University Student Council;
b) Impeach any member of the University Student Council of the University with a two-thirds vote of all its members; and
c) Propose amendments to this Constitution.

Sec. 5 The members of the Student's Congress shall elect their President who will sign and approved the final decision of the Student's Congress.

Sec. 6 The Student's Congress shall also elect a Secretary who shall keep the roll and record the minutes of the meeting.

Sec. 7 The President of the Executive Board of the University Student Council shall immediately appoint a member of the Student's Congress in case of vacancies in the position based on the recommendation of the Chairman of the Student Council of the College in which the vacancy took place.

Sec. 8 The Student's Congress shall convene every 2nd Friday of the month. The elected Vice President of the Student's Congress shall be the ex-officio chairman and shall preside the monthly meeting.

Sec. 9 A majority vote of 50% + 1 shall constitute a quorum of the Student's Congress.

Sec. 10 In cases of emergency or matters with utmost importance, the Student's Congress may convene upon request of the majority of its members.

Sec. 11 The members of the Student's Congress shall hold office for one year beginning from the day they take their oath of office on the first day of May until the same day of the following year.

ARTICLE XII

COORDINATING COUNCIL OF CAMPUS CO-CURRICULAR ORGANIZATIONS

Sec. 1 The Coordinating Council shall be headed by the President of the University Student Council as the Chairperson.

Sec. 2 The Coordinating Council shall be composed of the different Presidents of all recognized legitimate campus co-curricular organizations.

Sec. 3 The Coordinating Council shall have the following functions:

a) Coordinate university-wide activities, which need the participation and involvement of the whole student;
b) Provide a consultative mechanism and support for the implementation of the various programs and projects of all co-curricular organizations;
c) Plan programs and synchronize student activities in the campus;
d) Serve as a venue to present accomplishment reports, financial reports and such other reports of the university Student Council and other organizations as are necessary or required; and
e) Set rules and standards for the collection of membership fees or contributions by recognize campus co-curricular clubs or organizations for the approval of the University Administration.

Sec. 4 The Coordinating Council shall meet at least once every quarter or upon notice of the Chairperson or upon the request of any of its members or as often as the council may deem necessary.

Sec. 5 The Prefect of Student Activities shall serve as the Adviser of the Coordinating Council. As such, all resolutions and agreements arrived at by the Coordinating Council shall be noted by the Adviser.

ARTICLE XIII

THE COMMISSION ON STUDENT ELECTION

Sec. 1 The Commission on Student Elections is a constitutional commission that shall serves as the official electoral body of the university, the regular Student Council Election shall be held in the month of February.

Sec. 2 There shall be a Commission on Student Council Election (COSEL), which will preside over the conduct of student council election. Its members shall be appointed by the College Student Council Chairman of the different colleges.

Sec. 3 The Commission on Student Council Election shall act with their duties as follows:

a) Formulate the Election Code for the orderly and fair conduct of Student Council election;
b) Receive, review and approve applications for candidacy;
c) Conduct all election procedures including the election of the officers of the University Student Council of the University of Makati;
d) Handle and decide on all election protests and disputes;
e) Attend to all matters pertaining to all student elections;
f) Execute conduct of student election process based on the implementing rules and guidelines on election matters; and
g) Monitor and assist the election of local organizations for as long as it is not contrary to their Constitution and By-Laws; and
h) Recommend election results to OSL and PSA for proper endorsement.

Sec. 4 The decisions of Commission on Student Election shall be final and executory.

Sec. 5 The Chairman of Commission on Student Election shall:

a) Preside over all proceedings of the Commission on Student Election; and
b) Act as the Chief Executive Officer and shall serve as the official spokesperson of the Commission on Student Election.

Sec. 5 The Commission on Student Election shall compose of (1) one Chairman and (11) eleven commissioners, representing their respective colleges and centers of the University who must be:

c) Regular, bona fide student of the University of Makati; and
d) Of good moral character and has no derogatory records as certified by the OSL.

Sec. 6 The Commissioners of the COSEL shall be prohibited from appointed or elected positions in any offices or instrumentality.

Sec. 7 The members of the COSEL shall elect their Chairman, Secretary General, Treasurer, Auditor and two committees which are the Committee on Information Dissemination and Committee on Logistics.

Sec. 8 The Chairman is to be elected by all Commissioners and chosen from among them. The Chairman should be a second (2nd) term Commissioner unless any of the following should occur, in which case any Commissioner shall be qualified for the position:

a) All Commissioners are first time appointees; or
b) All 2nd term Commissioners decline the position of Chairman.

Sec. 9 No student may serve as Commissioner for more than (2) terms in office.

Sec. 10 The term of office of the Commission on Student Elections shall commence upon the appointment and shall end on the last day of April the following year.

ARTICLE XIV

TENURE, QUALIFICATIONS AND VACANCY

Sec. 1 All students enrolled in the respective colleges and academic center shall elect their respective officers for their College Student Council.

Sec. 2 All University Student Council and College Student Council officers will hold office for one academic year which will commence on the first week of May and will end on the last day of April the following year. Each officer may be re-elected and hold positions for two consecutive academic years.

Sec. 3 All College Student Council shall meet the following qualifications:

a) Must be a bona fide student of the University and must have at least one-year residency before and after the election;
b) Must carry a minimum academic load of eighteen units during the semester or as prescribed by the College and Academic Center;
c) Must have obtained a GWA of 2.50 or above with no two (2) incomplete grades, no failure or unofficially dropped subjects;
d) Must have no record of major offenses as certified by OSL; and
e) Any incumbent officials seeking for re-election; must be cleared for any financial liabilities from the accounting office.

Sec. 4 All College Student Council officers are required to submit certificate of grades every end of the semester to the PSA.

Sec. 5 All College Student Council are required to submit their accomplishment report a week before the Student Council Election.

Sec. 6 Vacancies may occur based on the following conditions:

A. Permanent vacancies may occur based on the following conditions:

a. 1 Impeachment;

a. 2 Resignation;

a. 3 Permanent physiological and/or psychological incapacity;

a. 4 Removal from office due to failure to meet grade requirement; and

a.5 Filing of leave of absence for one semester.

B. Temporary vacancies may occur based on the following conditions:

b.1 Filing of Leave of absence for one semester; or
b.2 Temporary physiological and/or psychological incapacity

In all cases, temporary vacancy can only last for five (5) to thirty (30) working days.

Sec. 7 Any permanent vacancy in the position of the President shall be filled by the Vice President. If the vacancy occurs in the position of the Vice President for any cause or for assumption to office as president, the Council shall elect a new Vice President among the USC Executive Board in a special meeting

called for the purpose. However, the said officers shall serve only for the unexpired term.

Sec. 8 In case of temporary vacancy in the office of the President, the Vice President shall be the acting president until such vacancy ceases to exist. In case of temporary vacancy in both of the offices of the President and Vice President, the remaining members of the USC Executive Board shall elect among themselves the acting president until such vacancy ceases to exist.

Sec. 9 In case of vacancy in any of its position, the council shall pass within 3 working days a resolution declaring that a vacancy exists and notices thereof shall be given to the University Student Council and Student Judicial Council. The resolution shall specify the grounds for declaration of vacancy.

ARTICLE XV

ACCOOUNTABILITY OF STUDENT OFFICERS

Sec. 1 All University Student Council officers shall serve with responsibility, integrity, loyalty and efficiency. They shall be accountable to all students and the University officials as well.

Sec. 2 Any University Student Council officers shall be disqualified to continue holding office on any of the following grounds:

a) Failure to enroll during his/her term of office;
b) Failure to attend five consecutive regular meetings within the semester unless valid reasons are presented;
c) Guilty of committing a major offense;
d) Guilty of any criminal offense by a regular court; and
e) Failure to meet the requirements as stipulated in Article XIV Section 3 of this Constitution.

Sec. 3 A resolution disqualifying an officer(s) shall be signed by the remaining officers and be passed to the Student's Congress. Such resolution should be proposed only by the Executive Board.

Sec. 4 The University Student Council officer shall be subject for impeachment under any of the following grounds:

a) Violation of any of the provisions of this Constitution;
b) Inability to perform his/her function as stated in Article VIII of this Constitution;
c) Malversation of Funds; and
d) Holding incompatible office positions and/or any executive positions.

Sec. 5 An impeachment case can be initiated through a resolution by any of the following:

a) Majority of the members of Student's Congress;
b) Majority of College Student Council officers; and
c) Any student through indorsement of the College Student Council or Student's Congress.

Sec. 6 An impeachment can be filed against an officer only once during his/her term of office.

Sec. 7 An impeachment case filed against any Executive Board member shall be deliberated upon by the members of the Student's Congress in a special session called for the purpose. This shall be presided by the President Pro-tempore of the Assembly. No officer shall be convicted without the

concurrence of three-fourths (3/4) of all members present. The entire proceedings shall be witnessed by the following:

a) PSA; and
b) Students' Congress.

ARTICLE XVI

CSC AND USC ADVISERS

Sec. 1 The Prefect of Student Activities by virtue of his/her designation, shall be the head adviser of the University Student Council and at all times shall guide the University Student Council.

Sec. 2 The College Dean will automatically become the adviser of the College Student Council, in times when the Dean will designate an adviser to the CSC, a formal letter must present and signed by himself to be approved by PSA.

Sec. 3 The head adviser shall be the official spokesperson to the school administration of the University Student Council and College Student Council.

ARTICLE XVII

FUNDING OF THE UNIVERSITY STUDENT COUNCIL

Sec. 1 The USC Fund shall come from the fixed and approved contribution fee of every student enrolled in a specific semester and academic year and other sources such as approved sponsorships and fund raising activities.

Sec. 2 The student contribution shall be collected by upon the enrollment of first semester and second semester to be collected and shall be undertaken by the Cash Office.

Sec. 3 All expenses of the council shall be paid out from this fund in accordance with approved university guidelines on accounting and auditing rules and procedures.

Sec. 4 The total collection of the University Student Council Fee from a specific semester will be divided into five shares having different percentage partition in determining the budget of the following;

a) USC Executive Board -	45%
b) College Student Council –	45%
c) Student's Congress -	10/3 or 10%/3
d) Student Judicial Council -	10/3 or 10%/3
e) Commission on Student Election-	10/3 or 10%/3

Sec. 5 The balance of the University Student Council and College Student Council fund for a specific semester shall be added to the fund for the next semester including balances from other authorized collection.

Sec. 6 All the remaining fifty percent of the total budget of each CSC will proceed as the general fund of the University Student Council on the concerned semester.

Sec. 7 The Signatories of the budget request of the USC fund shall be composed of the President, Head of Finance Committee for the student representative, Prefect of student Activities, and the Dean of the Office of Student Life for the management representative. Only one from each representative can sign the check to maintain the check and balance of the USC financial system.

Sec. 5 The Executive Board is in-charge of the miscellaneous fee collection with the guidance of the Cash Office. Any loss therein is charge to the officers of the Executive Board.

Sec. 6 The USC has the only authority to govern and utilize its fund.

ARTICLE XVIII

AMENDMENTS AND REVISIONS

Sec. 1 Any amendment to or revision of this Constitution may be proposed by:

a) The Students' Congress upon approval of two-thirds (2/3) votes of all its members; or

b) By Constitutional Convention.

b.1 Constitutional Convention, as defined by the Philippine Constitution, is a body assembled for the express purpose of framing a Constitution, or revising the existing Constitution, or formulating amendments to it for the approval of the electorate.

b.2 It shall be composed of the USC Executive Board, delegates from the College Student Councils and HSU – SSG, Academic and Non – Academic Organizations and also delegates from the Student Body.

Sec. 2 Any amendment to or revision of this Constitution shall be valid when ratified by two-thirds (2/3) votes cast in a plebiscite which shall be held not later than (1) month after the approval of such amendment or revision by two-thirds (2/3) votes of all the members of the Students' Congress.

ARTICLE XIX

SEPARABILITY CLAUSE

In case that part of this constitution shall be invalid and unenforceable, all other parts shall not be affected and consider valid.

ARTICLE XX

TRANSITORY PROVISION

Sec. 1 This Constitution shall take effect immediately after its ratification and shall take effect after fifteen days following the completion of its publication.

Sec. 2 Immediately after this Constitutions' ratification in a plebiscite and fifteen days following the completion of its publication, the term of office of all elected officers of the USC and CSC shall commence on the first week of May and will end on the last day of April.

The foregoing proposed 2019 Amended Constitution of University of Makati Student Council was approved by the Students' Constitutional Convention of 2019 on the 7th day of February, Two Thousand and Nineteen and accordingly signed on the same day at the Health and Physical Sciences Building (HPSB) Multimedia Room 507, University of Makati, by the delegates whose signatures are affixed in a separate resolution adopting the same.

APPENDIX

A RESOLUTION APPROVING THE PROPOSED 2019 UNIVERSITY STUDENT COUNCIL CONSTITUTION

WHEREAS, the University Student Council saw the need to amend its own Constitution;

WHEREAS, the USC Executive Board approved the motion to convene a Constitutional Convention to draft and approve a proposed constitution;

WHEREAS, the University Student Council convened a Constitutional Convention for the purpose of drafting and approving a proposed constitution;

WHEREAS, the University Student Council drafted and approved a proposed constitution for the University Student Council;

WHEREAS, the proposed constitution shall hereinafter be referred to as the 2019 Amended University of Makati Student Council Constitution;

WHEREAS, the Constitutional Convention called for the purpose of amending a constitution for the University Student Council hereby approves the said document;

NOW THEREFORE RESOLVED, AS IT HEREBY RESOLVED, that the Amended 2019 University of Makati Student Council Constitution was approved by the members of the USC Student's Constitutional Convention on 7th day of February, two Thousand and Nineteen at the Health and Physical Sciences Building (HPSB) Multimedia Room 507, University of Makati, by the delegates.

THE DELEGATES TO THE 2019 STUDENTS' CONSTITUTIONAL CONVENTION

NAME	POSITION	SIGNATURE
JEREMAE F. RELINGADO	President	
JENEHRY SWEETNY BERNAL	Vice President	
YGHNGJHYLL ENSON	2nd Year Representative, CBFS – SC, Secretary General	
JOSHUA FRANCO TOLENTINO	Finance and Review Committee	
VINA ABENILLA	OIC, Audit and Property Custodian Committee	
JOHN RANNEL VALDEZ	Treasurer, CCS -SC, Public Information Committee	
KARL ANTHONY EBOÑA	Vice Chairman. COE-SC, Education and Research Committee	
JONH RYAN CORAÑES	Spiritual and Personality Development Committee	
FREDERICK UMIPIG	OIC, Physical and Wellness Committee	
JASON PIODO	Socio – Cultural Committee	

JEFFREY GENZON	Community Extension Committee	
JOHN MIKECHOL PIMENTEL	Board Member	
ROGER BALAORO	Board Member	

UNIVERSITY STUDENT COUNCIL

PROPOSED AMMENDMENTS APPROVED BY THE UNIVERSITY STUDENT COUNCIL EXECUTIVE BOARD DATED JANUARY 10, 2019 AT THE USC CONFERENCE ROOM.

President of the Commission

BERNAL, JENEHRY SWEETNY F.

Vice-President of the Commission

MONICIT, HAYMAN

Floor Leaders

TAMAYO, LAWRENCE

TAMONDONG, ARIEL

Secretary General

BANTOLINO, CINDY

USC EXECUTIVE BOARD

JEREMAE RELINGADO, PRESIDENT

ANDREA TABIGNE, SECRETARY

JOSHUA TOLENTINO, FINANCE COMMITTEE CHAIR

JOHN RYAN CORANES, SPIRITIUAL AND PERSONALITY DEVELOPMENT CHAIR

DERKIUS RED RAMA, HEALTH AND WELNESS COMMITTEE CHAIR

ROGER BALAORO, BOARD MEMBER

VINA ABENILLA, COS -VICE CHAIR

JOHN ROVIC GAPUZ, HSU REPRESENTATIVE

JOSHUA TAMAYO, CAL REPRESENTATIVE